

Defendant has not filed a motion to tax; accordingly, once the time has passed, the costs are deemed a part of the judgment. Accordingly, the Court awards costs in this motion, and the Court strikes the memorandum of costs to prevent double recovery.

The Court grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs). This award shall be paid within 30 days of the date of this order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2407309	GARCIA vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL DEPOSITION ATTENDANCE OF A PERSON MOST QUALIFIED ON CATEGORIES NOT PRODUCED BY DEFENDANT AMERICAN HONDA MOTOR CO. INC

Tentative Ruling:

Summary of Ruling: The Court denies Plaintiffs' Motion to Compel Deposition Attendance of a PMQ. The Court denies Plaintiffs' Request for Sanctions.

Factual/Procedural Context

This is a lemon law action. Plaintiffs Sergio Garcia and Nayelli Garcia ("Plaintiffs") purchased a Certified Pre-Owned 2020 Acura MDX ("Subject Vehicle"), for which Defendant American Honda Motor Co., Inc. ("AHM") provided express and implied warranties. (Sapra Decl. ¶ 2.) Plaintiffs allege that after purchase they began experiencing persistent electrical issues and issues with the Subject Vehicle's Collision Mitigation Braking System ("CMBS"), and that although Plaintiffs delivered the vehicle for repair on numerous occasions, AHM was unable to conform the vehicle to its warranties and failed to promptly repurchase or replace it as required under the Song-Beverly Act.

(*Id.*)

Plaintiffs filed their initial Complaint on December 26, 2024, and their operative First Amended Complaint on April 4, 2025, asserting causes of action for (1) violation of the Song-Beverly Act – breach of express warranty and (2) fraudulent concealment. (*Id.* at ¶ 3.)

On March 23, 2026, Plaintiffs served their Second Amended Notice of Deposition of AHM's Person Most Qualified (“PMQ”) and Custodian of Records, setting the deposition for May 1, 2026. (*Id.* at ¶ 4, Ex. A.) The notice identified 54 matters for examination and categories of documents for production. (*Id.*)

On April 15, 2026, AHM served objections to the deposition notice, objecting generally on the grounds that the categories were vague, ambiguous, overly broad, unduly burdensome, oppressive, sought irrelevant information not reasonably calculated to lead to the discovery of admissible evidence, and to the extent they called for confidential, commercially sensitive, proprietary, or trade secret information. (*Id.* at ¶ 5, Ex. B.) AHM stated that it would produce a witness on May 1, 2026. (*Id.*)

On May 1, 2026, the deposition of AHM's PMQ, Jennifer Pacheco, went forward. (*Id.* at ¶ 6, Ex. C.) AHM's counsel confirmed on the record that Ms. Pacheco was being designated to provide testimony only to matters 29-54, and not to matters 1-28, which relate to the Honda Sensing System alleged to be defective in the Subject Vehicle. (*Id.*) Counsel for AHM indicated that Ms. Pacheco would be presented on the “non-fraud categories,” and that the parties could meet and confer as to the details on matters 1 through 28. (*Id.*)

On June 1, 2026, Plaintiffs' counsel emailed AHM to meet and confer regarding the categories Ms. Pacheco was not prepared to address at the May 1, 2026 deposition.

(*Id.* at ¶ 7, Ex. D.) Between June 1, 2026, and July 8, 2026, the parties engaged in numerous telephonic and email exchanges. (*Id.*) AHM offered some alternatives to producing a PMQ but ultimately did not offer to produce its PMQ on the outstanding categories, and the parties reached an impasse. (*Id.* at ¶ 8.)

On July 8, 2026, having received no agreement to produce a PMQ on the outstanding categories, Plaintiffs filed the instant motion to compel AHM to produce its PMQ for matters 1 and 3-28, together with a request for monetary sanctions in the amount of \$2,310.00. (*Id.* at ¶¶ 9–11.)

Plaintiffs now move to compel AHM to produce its PMQ for matters 1 and 3-28 pursuant to CCP § 2025.450(a), arguing that the noticed matters are relevant and material to their Song-Beverly and fraudulent concealment claims, that AHM's boilerplate objections do not obviate its obligation under CCP § 2025.230 to designate and produce a witness who is most qualified to testify on the noticed matters, and that Plaintiffs must obtain competent testimony on the Honda Sensing System in order to prepare their claims and oppose AHM's Motion for Summary Adjudication. Plaintiffs ask the Court to impose monetary sanctions against AHM and its counsel in the amount of \$2,310.00.

In opposition, AHM argues that Plaintiffs have already effectively obtained the deposition testimony they seek on matters 1-28 through the cross-noticed deposition of AHM's PMQs on technical and marketing issues related to the CMBS in *Andy Meraz v. American Honda Motor Co., Inc.*, Los Angeles County Superior Court Case No. 22AHCV01340, in which the parties stipulated that the *Meraz* PMQ testimony could be used in the cross-noticed cases, including this action. AHM further contends that Plaintiffs' counsel has been agreeable to accepting a signed stipulation for use of AHM's PMQ

testimony and related exhibits in lieu of demanding the witnesses be re-deposed in every case, and that AHM has returned an executed copy of the stipulation. AHM also argues that Plaintiffs' request for monetary sanctions should be denied.

In reply, Plaintiffs assert that the *Meraz* testimony is not substantively relevant to the CMBS issues in the Subject Vehicle because the camera and radar systems that comprise the CMBS in Plaintiffs' 2020 Acura MDX were manufactured by Nidec, while the *Meraz* vehicle (a 2022 Honda Accord) contained Bosch components (Sapra Decl. ¶ 3), and that no testimony from any cross-noticed case has addressed the camera and radar systems at the heart of the Subject Vehicle's CMBS functionality. Plaintiffs further contend that AHM cancelled a purportedly scheduled deposition on September 10, 2026, offering no explanation other than "unexpected circumstances." Plaintiffs renew their request for monetary sanctions.

Meet and Confer

Plaintiffs have satisfied their meet and confer obligation via telephone, and filed an appropriate declaration in compliance with CCP §§ 2016.040 and 2025.450(b)(2). (Sapra Decl. ¶ 7.)

Analysis

1. Motion to Compel Deposition Attendance

"Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action." (CCP § 2025.010.) A party seeking to depose an organization may serve a deposition notice describing "with reasonable particularity the matters on which examination is requested" and "the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters

to the extent of any information known or reasonably available to the deponent.” (CCP § 2025.230.)

CCP § 2025.450(a) provides the remedy when a deponent fails to appear:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, **fails to appear for examination, or to proceed with it**, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(CCP § 2025.450(a) [emphasis added].) The statute's text is explicit: the motion is available when the deponent fails to appear for examination, or to proceed with it. This contemplates a complete failure to appear or a refusal to proceed once the deposition has begun.

When a deponent objects to a deposition notice, section 2025.410(c) addresses the procedure: “a party may also move for an order staying the taking of the deposition and quashing the deposition notice” (CCP § 2025.410), and “[t]he taking of the deposition is stayed pending the determination of this motion.” (CCP § 2025.410(c).) The statute indicates that serving objections alone does not automatically stay a deposition; the objecting party must file a motion to quash to achieve that result. (*Id.*)

If the objecting party does not move to quash, and the deposition proceeds, any dispute about the scope of examination or the adequacy of the deponent's preparation is governed by section 2025.480. (CCP § 2025.480(a).) That section provides that “[i]f a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the

court for an order compelling that answer or production.” (*Id.*)

Here, the threshold predicates for a section 2025.450(a) motion are not met. AHM did not fail to appear at the May 1, 2026 deposition. The record shows that the deposition of AHM’s PMQ, Jennifer Pacheco, went forward on that date. (Sapra Decl. ¶ 6, Ex. C.) A witness appeared and the deposition proceeded. (*Id.*) The dispute is about which topics that witness was designated to address.

At the May 1 deposition, AHM’s counsel confirmed on the record that Ms. Pacheco was being designated to provide testimony to matters for examination numbers 29-54, and not matter nos. 1-28 in Plaintiffs’ notice. (*Id.* at ¶ 6, Ex. C [Pacheco Dep. 10:23–11:8].) AHM’s counsel stated that Ms. Pacheco would testify on non-fraud categories and suggested the parties meet and confer regarding matters 1-28. (*Id.*) This is not a failure to appear. It is a partial designation combined with an objection to the scope of examination.

AHM served objections to the deposition notice on April 15, 2026. (*Id.* at ¶ 5, Ex. B.) Plaintiffs did not move to resolve those objections before the deposition. Plaintiffs proceeded with the deposition, and Ms. Pacheco appeared and testified on some categories. When a corporate deponent appears but limits the scope of its designation, and questions remain about which categories the witness can address, the appropriate motion is under section 2025.480 to compel answers, not under section 2025.450 to compel attendance. Plaintiffs’ notice of motion expressly invokes only section 2025.450(a) as the basis for the relief sought (Pls.’ Notice of Mot. 2:5), and the Court “may consider only the grounds stated in the notice of motion.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125; CRC Rule 3.1110(a).)

Plaintiffs argue in reply that there was a subsequently scheduled deposition for

September 10, 2026, confirmed on February 26, 2026, that AHM cancelled on September 9, 2026, due to unexpected circumstances. (See Pls.' Reply 2:17–21.) If AHM failed to appear at a properly noticed deposition in September 2026, that would present the predicate for a section 2025.450 motion. However, Plaintiffs' moving papers (filed July 8, 2026) make no mention of a September 10 deposition date. The motion instead challenges AHM's May 1, 2026, conduct. The September 10 date is raised for the first time in reply, and the record does not establish whether a formal amended deposition notice was served for that date, whether it covered the disputed categories, or whether Plaintiffs appeared and attempted to proceed. Without a complete factual showing that AHM failed to appear at a properly noticed deposition for categories 1 and 3-28, the Court cannot grant relief under section 2025.450(a).

The proper procedural vehicle for Plaintiffs' dispute—*i.e.*, whether Ms. Pacheco should have been designated for categories 1 and 3-28, and whether AHM must now produce a different or better-prepared witness—is either (1) a motion to compel further answers under section 2025.480 if questions were asked and refused at the May 1 deposition, or (2) a motion for protective order or to resolve objections to the deposition notice under section 2025.410, followed by a motion to compel attendance at a properly noticed resumed or new deposition if AHM then fails to appear. Section 2025.450(a) does not authorize the Court to compel attendance when the deponent appeared and testified but the noticing party contends the wrong witness was designated or the designation was inadequate.

Because the motion fails on the threshold statutory predicate, the Court need not reach AHM's arguments about the sufficiency of cross-noticed testimony from the *Meraz* case, or Plaintiffs' arguments about the relevance of testimony specific to the camera and

radar systems in the Subject Vehicle. Those disputes may be material if the parties re-notice a deposition and AHM moves to quash or Plaintiffs move to compel further testimony under the correct statutory framework.

2. Monetary Sanctions

CCP § 2025.450(g)(1) provides: “If a motion under subdivision (a) is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).) Because the motion is denied on threshold grounds, mandatory sanctions do not apply.

Section 2025.480(j) provides that “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.480(j).)

Even if Plaintiffs had proceeded under section 2025.480, the Court would find that AHM’s position rests on substantial justification, and that other circumstances, including the parties’ good-faith disagreement about the scope of AHM’s designation obligations and the applicability of cross-noticed testimony, make the imposition of sanctions unjust. The Court therefore declines to award sanctions against either party.